



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY
OF SAN MATEO**

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

September 11, 2026 - 9:00 AM

**If an appearance by Zoom is allowed, parties must appear through Zoom Video.
Zoom Audio is only to be used if Zoom Video is unavailable.
Please check in with the clerk by 8:45 AM.**

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.



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17-PRO-00248-A	IN RE THE MATTER OF THE SPITZ FAMILY 1996 TRUST	Status RE: Settlement OR Trial Setting Conference-Continued from 07/09/26
Line 1	Petitioner: First-Citizens Bank & Trust Company, etc. (LEE, JAMAY) Petitioner: SPITZ, WILLIBALD J. (DUGONI, LAURENCE P.) Decedent: SPITZ, THERESA Respondent: Spitz, Perry (DOWLING, DONALD J.)	Status Hearing
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) [Related matters at lines 1 and 8] Parties are ordered to appear for trial setting.		

21-PRO-01453	Conservatorship of Beatrice Carder	SECOND ACCOUNTING AND REPORT OF CONSERVATOR OF THE PERSON AND ESTATE; PETITION FOR REIMBURSEMENT OF EXPENSES TO CONSERVATOR; AND PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR AND ATTORNEY - Continued on 06/12/2026 Continued on 06/12/2026
Line 2, 3	Proposed Conservatee: Carder, Beatrice (DURRANS, KATHLEEN A.) Petitioner: Carder, Virginia (BRODERICK-VILLA, WILLIAM HOBAN, NICKHALE EDGAR SCOTT, SYDNEY KATHRYN) Conservatee: Carder, Beatrice (DURRANS, KATHLEEN A.) Conservator: Carder, Virginia	Petition Hearing Conservatorship Review - Biennial



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Tentative Ruling:

APPEARANCE OPTIONAL

The request for attorney fees is deferred for petitioner to revise amount requested. As fees incurred as a result of the problematic and code-deficient First Account were not for the conservatee's benefit, the court will not award attorney's fees for work documented in the billing records from August 1, 2025 through November 21, 2025. Counsel is to submit a modified proposed order which includes fees charged only through July 31 2025. That hearing will be set on December 11, 2026 at 9:00 a.m. The periodic monthly fee request is DENIED. The remainder of the Amended Second Accounting and Report of Conservator is GRANTED absent cogent objection. Formal order required.

22-PRO-01377	Conservatorship of Joao Pedro de Oliveira Costa	
Line 4	Proposed Conservatee: Pedro de Oliveira Costa, Joao Petitioner: Costa da Silva, Sonisdei (Pro Se) Conservatee: Pedro de Oliveira Costa, Joao Conservator: Costa da Silva, Sonisdei (Pro Se)	Conservatorship Review - Biennial

Tentative Ruling:

NO APPEARANCE

The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.



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22-PRO-01380	Conservatorship of Ella C Jonsson	
Line 5	Proposed Conservatee: Jonsson, Ella C (FRIEDMAN, SHERRIE S.) Petitioner: Jonsson, Amy (FALK, MARY S. BURGUENO, JESSIE JULIAN) Petitioner: Jonsson, Patric (FALK, MARY S. BURGUENO, JESSIE JULIAN) Conservatee: Jonsson, Ella C (FRIEDMAN, SHERRIE S.) Proposed Conservator: Jonsson, Amy Proposed Conservator: Jonsson, Patric Conservator: JONSSON, AMY (FALK, MARY S.) Conservator: JONSSON, PATRIC (FALK, MARY S.)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist. The co-conservators are ordered to file an amended Order Appointing Conservator and Letters of Conservatorship within fifteen (15) days as discussed in the Investigator's Review Report filed on 8/19/2026. A status hearing is set on <u>January 29, 2027 at 9:00 am</u> to confirm the filing of the amended documents. If Conservators fail to file the amended documents as ordered, the Court intends to issue an order to show cause to the Conservators as to why they should not be sanctioned or removed. The Private Defender is discharged.		
23-PRO-01075	Conservatorship of Clotilde De Luca	Continued from 04/15/26 PETITION FOR THE FIRST ACCOUNTING OF THE CONSERVATORSHIP OF CLOTILDE DE LUCA- Continued from 04/15/26
Line 6, 7	Proposed Conservatee: De Luca, Clotilde (DURRANS, KATHLEEN A.) Petitioner: Basualdo, Patrizia De Luca (CROWLEY, JOHN K.) Conservatee: De Luca, Clotilde (DURRANS, KATHLEEN A.) Conservator: Basualdo, Patrizia De Luca	Conservatorship Review - Biennial Petition Hearing



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Tentative Ruling:

APPEARANCE OPTIONAL

Disappointingly, the Amended Petitions for First Accounting of both the Conservatorship of Clotilde De Luca and the De Luca Family trust create more questions than they resolve. First and foremost, who is "Estrella Clotilde De Luca" repeatedly referenced in the lodged financial records? One might assume that is the Conservatee, but not a single pleading or document in support of the Conservatorship identifies her as such.

Why is the house on Hudson, which has been alleged in a declaration filed by petitioner to be a part of the Trust, listed in the Conservatorship estate I&A filed 12/20/24? The real estate on the inventory is not appraised by a California Probate Referee as required, and the Court does not waive this requirement if the real property is in the Conservatorship estate. Why is there no Attachment 1 to the Corrected I&A filed 7/24/26? What constitutes the change in value between the two I&As? The inventory and appraisal should be amended to reflect the actual assets on hand at the beginning of account.

(1) The Assets on Hand at the beginning of the accounting period do not match the Inventory and Appraisal filed. On December 20, 2024, Petitioner filed an inventory with a total value of \$2,177,670. On July 24, 2026 Petitioner filed an inventory – supplemental with a total value of \$2,197,410 (this filing is missing the attachments). The inventory reflected on the accounting is \$2,140,452.35.

(2) The IRA and Vanguard account is valued on the Inventory and Appraisal at \$100,000 which does not match the inventory on the accounting. The accounting opening sum does match the statement, correctly reflecting the value of \$49,925.81.

(3) The Wells Fargo Bank account ending in 4010 is not listed on the inventory and appraisal. The accounting opening sum does match the statement, correctly reflecting the value of \$12,856.54.

The following also requires further detail:

Repairs and Upgrades: Petitioner details \$11,059.95 for repairs and upgrades, in addition to the \$17,183.92 listed in disbursements. Further explanation should be provided. While it is clear that Petitioner completed numerous necessary home improvements, the detail should reflect those improvements and purchases.

Cryptocurrency: There are \$24,800 in Disbursements made to Cryptocurrency Exchanges (Coinbase, Uphold and Kraken) listed on a "Change in Form of Assets" Schedule identified as "Receivables" owed by the conservator. Unlike the first filing, there are no similar disbursements listed so it is unclear if these were paid from the conservatee's trust. Petitioner alleges those sums were repaid in December 2025. Petitioner's declaration does not sufficiently clarify this issue. Further clarification/explanation is required.

Auto expenses: Conservator claims that she has a single vehicle, which she uses exclusively for the benefit of the conservatee. This does not seem very credible, in light of her own assertion that



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she owns two properties, which means she has to obviously expend time and travel attending to them. The Conservatee estate should not be expending any resources for Conservator's auto insurance, auto maintenance, gas, etc.

Life Insurance Policy: It is commendable that Conservator has taken out a life insurance policy naming Conservatee as its only beneficiary. That does not necessarily mean it is chargeable to the conservatee estate if it was done without court approval. The court would be willing to consider this as a legitimate cost, but petitioner would have to submit a complete copy of the policy in a supplement.

The Conservatorship bond is set at \$123,000.

Petition and the Review Hearing are CONTINUED to January 28, 2027 at 9:00 am for Petitioner to correct and/or provide additional information regarding these issues:

24-PRO-00447	IN THE MATTER RE: THE WILLIBALD J. SPITZ TRUST	Status RE: Settlement OR Trial Setting Conference- Continued from 07/09/26
Line 8	Petitioner: First-Citizens Bank etc. (LEE, JAMAY) Decedent: SPITZ, WILLIBALD Respondent: Spitz, Perry (DOWLING, DONALD J.)	Status Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed) [Related matters at lines 1 and 8]

Parties are ordered to appear for trial setting.

26-PRO-00324	Guardianship of Anderson Orlando De Leon Hernandez	Continued from 08/13/26 Continued from 08/13/26
Line 9, 10	Petitioner: De Leon Hernandez, Anderson Orlando (GARZON, MARCO) Ward: De Leon Hernandez, Anderson Orlando Proposed Guardian: De Leon Hernandez, Daykla Zulema	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings



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Tentative Ruling:

APPEARANCE ORDERED (Zoom not allowed)

The court afforded petitioner an opportunity to supplement his request for the establishment of a guardianship and SIJF. The court appreciates the additional information submitted in declarations by both the proposed ward and guardian. The Court is somewhat confined by what petitioner alleges, which is a finding of neglect by both his mother and father. He states that his family lived in extreme poverty, and provides detailed facts in support thereof. Unfortunately, what he has described does not meet the definition of neglect under California law. It is defined as "willful or negligent failure of the parent or guardian to provide the child with adequate food, clothing, shelter, or medical treatment." Cal. Welf. & Inst. Code § 300(b)(1)." Nothing in his declaration or that of the proposed guardian even suggests the parents engaged in "willful or negligent failure to provide...." In spite of their own diligent efforts, the parents were simply not able to raise the family out of poverty. That is not the same as willful or negligent conduct. Neglect is the only allegation in the petition. However, based upon the declaration of the proposed guardian, there appears to be a basis on which to find abandonment on the part of the mother. Parties to appear to address how to address the inconsistency with how the matters are pled and what the evidence actually shows.

26-PRO-00496	In The Matter of the Joseph And Johanna Kapka Family Trust, Dated August 31, 2005, as amended and restated	FIRST ACCOUNT AND REPORT OF TRUSTEE AND PETITION FOR (1) SETTLEMENT OF ACCOUNT; (2) RATIFICATION OF ACTS OF TRUSTEE; (3) APPROVAL OF TRUSTEE COMPENSATION; (4) APPROVAL OF ATTORNEYS' FEES; AND (5) AND AUTHORIZATION OF PRELIMINARY DISTRIBUTION
Line 11	Petitioner: Scott, Anita (LEYDIKER, STEVEN S.) Decedent: KAPKA, JOHANNA Decedent: KAPKA, JOSEPH	Petition Hearing



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Tentative Ruling:

NO APPEARANCE

First Account and Report of Trustee is CONTINUED to December 8, 2026 at 9:00 am for Petitioner to (1) provide why venue is proper in San Mateo County, (2) file a copy of the Notification by Trustee pursuant to Probate Code section 16061.7 and proof of service of the Notification, (3) file a proof of service or declaration of diligent search for Conor Minihane, or an acknowledgement by attorney Leighton Burrey that he represents Conor Minihane and has authority to accept service, and (4) file a proposed order.

26-PRO-00497	IN THE MATTER OF DAVID WALDA LIVING TRUST	PETITION FOR DETERMINATION THAT REAL PROPERTY HELD SEPARATELY IN DECEDENT'S NAME IS AN ASSET OF THE TRUST UNDER PROBATE CODE 850
Line 12	Petitioner: Walda, Matthew Young Lee (O'TOOLE, BRIAN A.) Decedent: WALDA, DAVID GEORGE	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

Petition for Determination that Real Property Held Separately in Decedent's Name is an Asset of the Trust under Probate Code §850 is CONTINUED to December 8, 2026 at 9:00 am for Petitioner to comply with Probate Code 851 and use Judicial Counsel form DE-115, and file a proposed order.



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26-PRO-00503	DE VERDI TRUST	VERIFIED PETITION TO ESTABLISH TRUSTEE'S CLAIM OF OWNERSHIP TO PROPERTY AND FOR ORDER CONFIRMING ITS TRANSFER TO TRUSTEE
Line 13	Petitioner: Aijala, Robert (DAVIS, PHILIPPE G.) Decedent: DE VERDI, MATTHEW	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

Verified Petition to Establish Trustee's Claim of Ownership to Property and for Order Confirming its Transfer to Trustee is GRANTED absent cogent objection. Formal order required.

26-PRO-00761	NICHOLAS PEZZULICH OBO BRUNO PEZZULICH vs. BRIAN PEZZULICH AND DIANA PEZZULICH	
Line 14	Petitioner: PEZZULICH, NICHOLAS (GRUBER, JOSEPH E., JR) Real Party In Interest: PEZZULICH, BRUNO Respondent: PEZZULICH, BRIAN (WATTERS, ANDREW G.) Respondent: PEZZULICH, DIANA (WATTERS, ANDREW G.)	Req for Elder or Dept Adult Restraining Order Allow Contact

Tentative Ruling:

APPEARANCE ORDERED (Zoom not allowed)

Depending upon the number of witnesses and/or how the parties wish to proceed, they should expect the hearing will take longer than 2 hours in the morning session. They should be prepared to continue in consecutive sessions until the matter concludes, which includes going into the afternoon and Monday afternoon if necessary.

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26-PRO-01120	Conservatorship of BARRY LEE BRYAN	
Line 15	Proposed Conservatee: BRYAN, BARRY LEE Petitioner: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE NIBBELIN, JOHN D.) Proposed Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN	Appointment of Temporary Conservator for Person and Estate
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) The Petition for Temporary Conservatorship of the Person and Estate of Barry Lee Bryan is GRANTED. Formal order required. As an aside, the Court notes that the petition for conservatorship erroneously lists the date of hearing as January 27, 2026; the citation issued to the proposed conservatee lists the hearing date at January 21, 2027. The date on the citation is the date set for hearing.		

26-PRO-01147	Guardianship of CAMERON ALSALLOM, AMIRA ALSALLOOM	
Line 16	Petitioner: SELDEN, CANDIE (Pro Se) Ward: ALSALLOM, CAMERON Ward: ALSALLOOM, AMIRA Proposed Guardian: SELDEN, CANDIE	Appointment of Temporary Guardian for Person
Tentative Ruling: APPEARANCE OPTIONAL (Zoom allowed) Petition for Appointment of Temporary Guardian of the Person is denied for failure to establish good cause for appointment of the temporary guardian and failure to file proofs of service showing that the notice of hearing was personally served on the proposed ward who is 12 years of age or older, and the parents of the proposed wards. See Probate Code 2250.		

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PRO091258-A	Conservatorship of PHILIPPE G. WYBORN	& for PG to File a Petition to Remove the Current Trustee & Appoint the PG as Successor Trustee of the Survivor's Trust and Trustee of the Bypass Trust-Continued from 04/15/26
Line 17	Proposed Conservatee: WYBORN, PHILIPPE G. Petitioner: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE) Proposed Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE) Conservatee: WYBORN, PHILIPPE G. Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (HEUMANN, TARA E SAN MATEO COUNTY ATTORNEY'S OFFICE) Mother: WYBORN, CHRISTIANE	Accounting(Biennial) Conservator and Petition for Settlement
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) The Public Guardian is to appear to provide status and address why no petition to remove the current trustee and appoint the Public Guardian as the Successor Trustee of the Survivor's Trust and Trustee of the Bypass Trust has been filed since it was ordered on April 15, 2026.		

PRO121966	CONSERVATORSHIP OF KENNETH E. DAVIS	
Line 18	Proposed Conservatee: DAVIS, KENNETH EARL Petitioner: DAVIS, JAMES A. (GRUBER, JOSEPH E., JR) Petitioner: RODGERS, PRISCILLA M. (GRUBER, JOSEPH E., JR) Proposed Conservator: DAVIS, ISABELLA Proposed Conservator: DAVIS, JAMES A. Proposed Conservator: DAVIS, WENDY Proposed Conservator: RODGERS, PRISCILLA M. Conservatee: DAVIS, KENNETH E. Conservator: DAVIS, JAMES ALAN (GRUBER, JOSEPH E., JR) Conservator: RODGERS, LESTER V. (FLEISHMAN, ALLEN H.) Conservator: RODGERS, PRISCILLA M. (GRUBER, JOSEPH E., JR)	Appointment of Conservator for Person



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Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

The Petition to Appoint Conservator for the Person is GRANTED as follows:

1. Wendy Davis and Isabella Davis are appointed successor limited co-conservators of the person of Kenneth Earl Davis, and a limited conservatorship is the least restrictive alternative to protect the limited conservatee.
2. The limited conservatee's attendance at the hearing is waived.
3. The following limited powers are granted to the successor limited co-conservators pursuant to Probate Code §2351.5:
 - a. To fix the residence or specific dwelling of the limited conservatee;
 - b. Access to the confidential records and papers of the limited conservatee;
 - c. The right to contract;
 - d. The power to give or withhold medical consent; and
 - e. Decisions concerning the education of the limited conservatee.

The limited co-conservators shall secure for the limited conservatee such habilitation or treatment, training, education, medical and psychological services, and social and vocational opportunity as appropriate and as well assist the limited conservatee in the development of maximum self-reliance and independence.

4. The other order requested in box 11 of the petition is granted; namely, that the signature of any limited co-conservators shall suffice to represent the limited co-conservators to transact limited conservatorship business. All limited co-conservators shall remain liable for the acts of any limited co-conservator and shall not be relieved of any liability by the omission of their signature on any documents purporting to represent the limited conservatorship. All decisions affecting the limited conservatorship shall continue to require the consent of a majority of limited co-conservators notwithstanding this provision.

5. For consistency with the Court's previous orders, the order that the limited co-conservators are authorized to visit Kenneth in-person no less than twice a year is extended to include Wendy Davis and Isabella Davis as successor limited co-conservators.

6. A non-appearance hearing on the successor limited co-conservators' filing of the following documents is set for January 11, 2027 at 9:00 am:

- a. Confidential Conservatorship Care Plan Parts 1&2 (GC-355 & GC-356) within one hundred twenty (120) days of appointment.
7. Pursuant to Probate Code §1830, the successor limited co-conservators shall file a proof of mailing of the Notice of Conservatee's Rights within thirty (30) days of appointment.
8. The successor limited co-conservators, Wendy Davis and Isabella Davis, shall attend conservator education classes within six (6) months of being appointed limited co-conservators and a Proof of Completion shall be filed with the Court.
9. The assessment amount of \$850.00 for the cost of the Court's investigation is ordered and deferred until the Court determines sufficient funds exist.
10. The conservatorship shall be reviewed in one (1) year.



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